

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOANG NHAT TRAN,

Petitioner

VS.

YANXIA XIE,

Respondent

) Case Number: FPT-23-378259

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Hoang Nhat Tran (Father) and Yanxia Xie (Mother) have one minor child together, Jamie (DOB 5/17/2017, age 8). Father was determined to be Jamie's biological father in October 2025. On 10/20/2025, this Court issued a 5-year Domestic Violence Restraining Order (DVRO) protecting Mother, Jamie, and Mother's older daughter from another relationship. The Court awarded Mother sole legal and physical custody of Jamie, with 2 hours of weekly professionally supervised visits for Father (costs of supervision to be paid by Father).
- 2) The Court has held review hearings since the 10/20/2025 hearing. Father has not exercised his parenting time regularly, and custody and visitation has remained as previously ordered, with some minor modification, most significantly the addition of weekly phone/video calls via Our Family Wizard. This matter is on for a further review hearing on 9/15/2026.
- 3) On 9/4/2026, Mother filed an update declaration stating Father has not initiated any phone/video calls via Our Family Wizard and has not exercised any of his visitation rights since the last

review hearing of 6/12/2026. She states that the most recent contact between Father and Jamie was over 6 months ago, on 3/1/2026.

- 4) Father has not filed an update declaration.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father's in-person supervised parenting time with Jamie (i.e., 2 hours of weekly professionally supervised visits) is temporarily suspended. If and when Father wishes to resume in-person supervised parenting time, he shall contact Mother via Our Family Wizard to schedule phone/video calls. The parties shall in good faith work together to schedule the phone/video calls. After Father has had at least 3 phone/video calls with Jamie within a 45-day period, he shall be entitled to resume his in-person parenting time.
- 3) To exercise his in-person parenting time, Father shall, after the end of his 3 phone/video calls, notify Mother via Our Family Wizard of his intent to resume in-person parenting time. Thereafter, he shall be entitled to 2 hours of professionally supervised visits **every other** Sunday or Saturday after 12pm, the time, date, and exchange location to be arranged by the parties, subject to the professional supervisor's availability. The first professionally supervised visit may occur at any time after the 3 video calls occur.
- 4) After Father has consistently exercised his alternating, in-person parenting time for a period of 3 months, his in-person parenting time shall be increased to 2 hours of professionally supervised visits **every** Sunday or Saturday after 12pm, the time, date, and exchange location to be arranged by the parties, subject to the professional supervisor's availability.
- 5) All prior orders not in conflict with these orders shall remain in full force and effect.
- 6) Mother's attorney shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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